BOOK 627 PAGE 173

Recorded at Request of State of Utah Dept of Engineering AUG 7 1948
at 10:15 M Fee paid $ 0.00 Hazel Taggart Chase, Recorder Salt Lake County, Utah
By C. L. Schettler, Dep. Book 627 Page 173 – Ref. D42-209-32

2

1130487

FI. 97-11

D42-196-3 to 5
D42-197-3 to 5
D42-208-21-24

QUITCLAIM DEED

THIS DEED, Made this 17th day of July, 1948, between THE DENVER AND RIO GRANDE WESTERN RAILROAD COMPANY, a Delaware corporation, Grantor, and STATE ROAD COMMISSION OF UTAH, Grantee:

WITNESSETH, That the said Grantor, for and in consideration of the sum of ONE DOLLAR ($1.00), to the said Grantor in hand paid by the said Grantee, the receipt whereof is hereby confessed and acknowledged, has remised, released, sold, conveyed, and QUITCLAIMED, and by these presents does remise, release, sell, convey, and QUITCLAIM unto the said Grantee, its successors and assigns forever, all the right, title, interest, claim, and demand which the said Grantor has in and to the land constituting right of way of said Grantor for part of the abandoned portion of the Grantor's Park City Branch, as shown on the attached map marked Exhibit "A" and hereby made a part of this deed, situate, lying, and being in Salt Lake and Summit Counties, Utah, and more particularly described as follows - to-wit:

pt. SE 18, 1S 2E; N½ SW 17, 1S 2E; SE NW 17, 1S 2E; NW SE 17, 1S 2E; pt NE 17, 1S 2E; SE SW 8, 1S 2E; S½ SW 9, 1S 2E; NE SW 9, 1S 2E; N½ SE 9, 1S 2E; SW SE 9, 1S 2E; SE NE 9, 1S 2E

From Mile Post 8 + 1031 feet to Mile Post 11 + 2349 feet, 200 feet wide for a distance of 17,066 feet, within Sections 18, 17, 8, and 9, Township 1 South, Range 2 East, Salt Lake Base and Meridian;

From Mile Post 11 + 2349 feet to Mile Post 12 + 566 feet, 100 feet wide for a distance of 3518 feet, within Section 10, Township 1 South, Range 2 East; pt NW 10, 1S 2E

From Mile Post 12 + 566 feet to Mile Post 12 + 1161 feet, 66 feet wide for a distance of 595 feet, within Section 10, Township 1 South, Range 2 East; N½ NE 10, 1S 2E

From Mile Post 12 + 1161 feet to Mile Post 12 + 1746 feet, 99 feet wide for a distance of 585 feet, within Section 10, Township 1 South, Range 2 East; N½ NE 10, 1S 2E

From Mile Post 12 + 1746 feet to Mile Post 12 + 3201 feet, 66 feet wide for a distance of 1455 feet, within Section 10, Township 1 South, Range 2 East; N½ NE 10, 1S 2E

Description Correct
Hugh J. Lee
Chief Draftsman

W½ NW 11, 1S 2E; SW NW 11, 1S 2E

From Mile Post 12 + 3201 feet to Mile Post 13 + 210 feet, 100 feet wide for a distance of 2220 feet, within Section 11, Township 1 South, Range 2 East;

NE SW 11, 1S 2E

From Mile Post 13 + 210 feet to Mile Post 13 + 1435 feet, 200 feet wide for a distance of 1225 feet, within Section 11, Township 1 South, Range 2 East;

N½ SE 11, 1S 2E

From Mile Post 13 + 1435 feet to Mile Post 13 + 4350 feet, 100 feet wide for a distance of 2915 feet, within Section

11, Township 1 South, Range 2 East;

From Mile Post 13 + 4350 feet to Mile Post 14 + 430 feet, 200 feet wide for a distance of 1435 feet, within Section 12, Township 1 South, Range 2 East;

From Mile Post 14 + 430 feet to Mile Post 14 + 1905 feet, 100 feet wide for a distance of 1475 feet, within Section 12, Township 1 South, Range 2 East;

From Mile Post 14 + 1905 feet to Mile Post 14 + 4255 feet, 200 feet wide for a distance of 2350 feet within Section 13, Township 1 South, Range 2 East;

From Mile Post 14 + 4255 feet to Mile Post 15 + 557 feet, 66 feet wide for a distance of 1592 feet, within Section 12, Township 1 South, Range 2 East;

From Mile Post 15 + 557 feet to Mile Post 15 + 650 feet, 200 feet wide for a distance of 93 feet, within Section 18, Township 1 South, Range 3 East;

From Mile Post 15 + 650 feet to Mile Post 15 + 1617 feet, 100 feet wide for a distance of 967 feet, within Section 7, Township 1 South, Range 3 East;

From Mile Post 15 + 1617 feet to Mile Post 15 + 1867 feet, 202 feet wide for a distance of 250 feet, within Section 7, Township 1 South, Range 3 East;

From Mile Post 15 + 1867 feet to Mile Post 15 + 2465 feet, 100 feet wide for a distance of 598 feet, within Section 7, Township 1 South, Range 3 East;

From Mile Post 15 + 2465 feet to Mile Post 15 + 3348 feet, 100 feet wide for a distance of 883 feet, within Section 12, Township 1 South, Range 2 East;

From Mile Post 15 + 3348 feet to Mile Post 15 + 3640 feet, 255 feet wide for a distance of 292 feet, within Section 12, Township 1 South, Range 2 East;

From Mile Post 15 + 3640 feet to Mile Post 16 + 1182 feet, 100 feet wide for a distance of 2740 feet, within Section 12, Township 1 South, Range 2 East;

From Mile Post 16 + 1182 feet to Mile Post 17 + 1177 feet, 100 feet wide for a distance of 5325 feet, within Section 7, Township 1 South, Range 3 East;

Description Correct
Chief Draftsman

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From Mile Post 17 + 1177 feet to Mile Post 17 + 4392 feet, 66 feet wide for a distance of 3215 feet, within Section 8, Township 1 South, Range 3 East;

From Mile Post 17 + 4392 feet to Mile Post 18 + 334 feet, 100 feet wide for a distance of 1335 feet, within Section 8, Township 1 South, Range 3 East;

From Mile Post 18 + 334 feet to Mile Post 18 + 1889 feet, 200 feet wide for a distance of 1555 feet, within Section 8, Township 1 South, Range 3 East;

From Mile Post 18 + 1889 feet to Mile Post 19 + 2711 feet, 100 feet wide for a distance of 6040 feet, within Sections 9 and 10, Township 1 South, Range 3 East;

All that portion of the above described land from Mile Post 8 + 1031 feet to Mile Post 18 + 3189 feet is located in Salt Lake County, and that portion from Mile Post 18 + 3189 feet to Mile Post 19 + 2711 feet is located in Summit County, State of Utah.

Description Correct
Chief Draftsman

Also, all of the right, title, and interest which the party of the first part may have in and to a tract or parcel of land within the northwest quarter of the northeast quarter of Section 11, Township 1 South, Range 3 East, Salt Lake Base and Meridian - described as follows: A strip of land 100 feet wide, being 50 feet wide on each side of the center line of the tail of wye track of The Denver and Rio Grande Western Railroad Company as the same was formerly constructed and operated within said subdivision, said center line of wye track intersecting the east line of said subdivision about 840 feet south from its northeast corner and extending thence in a northwesterly direction to a point about 460 feet south and about 675 feet west from the northeast corner of said subdivision - containing 1.75 acres, more or less;

Also, all of the right, title, and interest which the party of the first part may have in and to a tract or parcel of land within the northwest quarter of the southwest quarter of Section 9, Township 2 South, Range 4 East, Salt Lake Base and Meridian - described as follows: A strip of land 50 feet wide being 25 feet wide on each side of the center line of the main track of the Park City Branch of The Denver and Rio Grande Western Railroad Company as the same was formerly constructed and operated over and across said subdivision lying between the proposed right of way lines for U. S. Highway No. 40, said lines intersecting said center line of former main track at points about 190 feet and 340 feet southeasterly measured along said former main track from its intersection with the north line of

said subdivision, said center line of former main track extending from a point in the north line of said subdivision about 380 feet east from the northwest corner of said subdivision South 31° 58' East to a point in the south line of said subdivision about 1,230 feet east from the southwest corner of said subdivision - containing 0.17 acres, more or less.

Description Correct
Hugh S. Allen
Chief Engineer

This conveyance is made free from the liens of the First Mortgage and the Income Mortgage of The Denver and Rio Grande Western Railroad Company, both dated January 1, 1943, pursuant to Article XI, Section 2 (b) thereof, which said mortgages are duly recorded in Book 529 at page 687 and in Book 529 at page 545, respectively, of the records of the Clerk and Recorder of Salt Lake County, Utah, and in Book 17 at page 274-7 and in Book 17 at page 274-348, respectively, of the records of the Clerk and Recorder of Summit County, Utah.

TO HAVE AND TO HOLD the same, together with all and singular the appurtenances and privileges thereunto belonging or in anywise thereunto appertaining, and all the estate, right, title, interest, and claim whatsoever of the said Grantor, either in law or equity, to the only proper use, benefit, and behoof of the said Grantee, its successors and assigns forever.

IN WITNESS WHEREOF, the said Grantor has caused its corporate seal to be hereunto subscribed by its President and its corporate seal to be hereunto affixed, attested by its Secretary, the day and year first above written.

THE DENVER AND RIO GRANDE WESTERN RAILROAD COMPANY

By Wilson McCarthy
President

Attest:

Secretary

STATE OF COLORADO :
: ss.
CITY AND COUNTY OF DENVER :

On the 17th day of July, 1948, personally appeared before me Wilson McCarthy who being by me duly sworn did say that he is the President of THE DENVER AND RIO GRANDE WESTERN RAILROAD

COMPANY, a Delaware corporation, and that said instrument was signed in behalf of said corporation by authority of a resolution of its Board of Directors, and said Wilson McCarthy acknowledged to me that said corporation executed the same.

My commisssion expires Jan. 12, 1952

Notary Public

APPROVED AS TO FORM
T R Woodard
GENERAL ATTORNEY

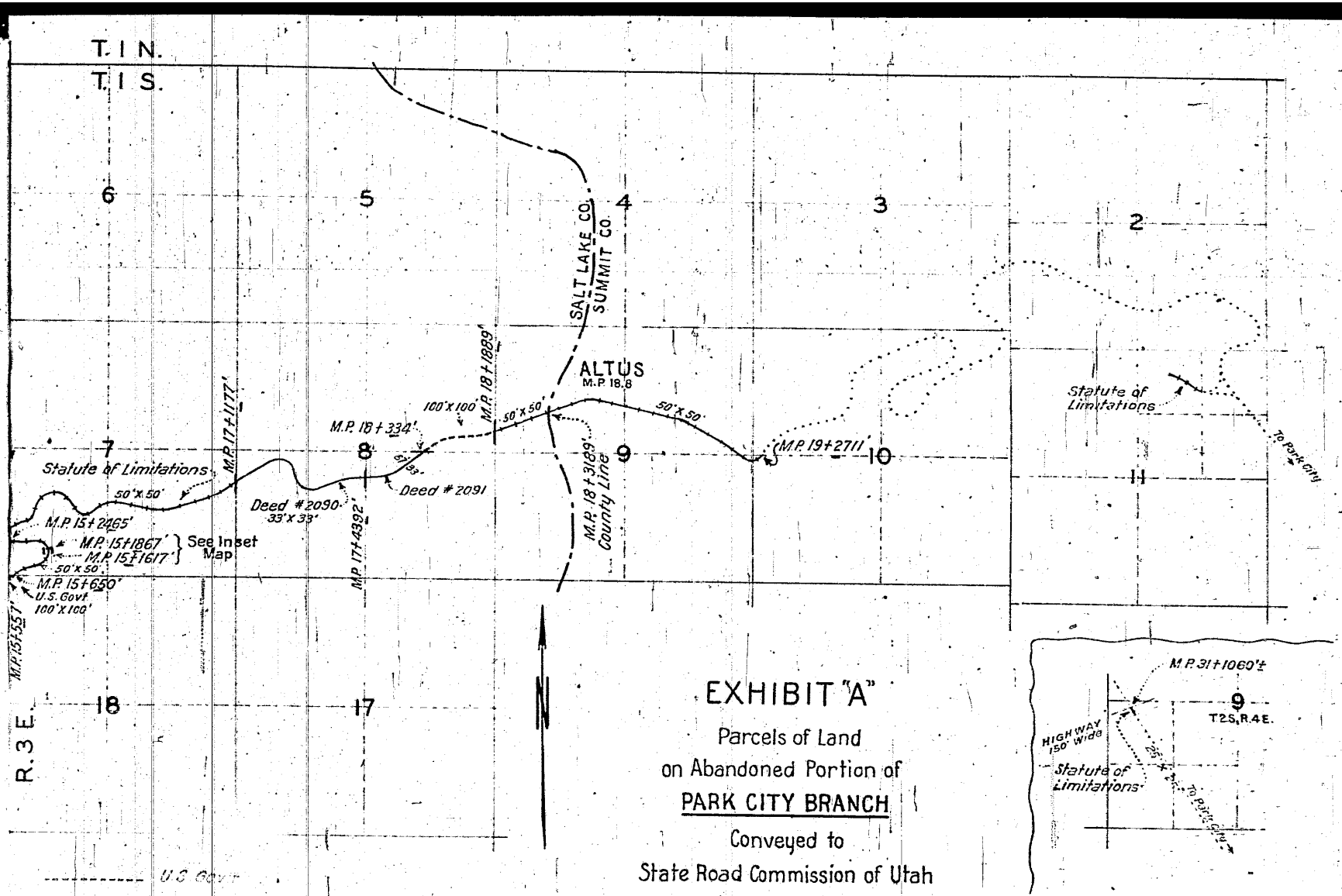
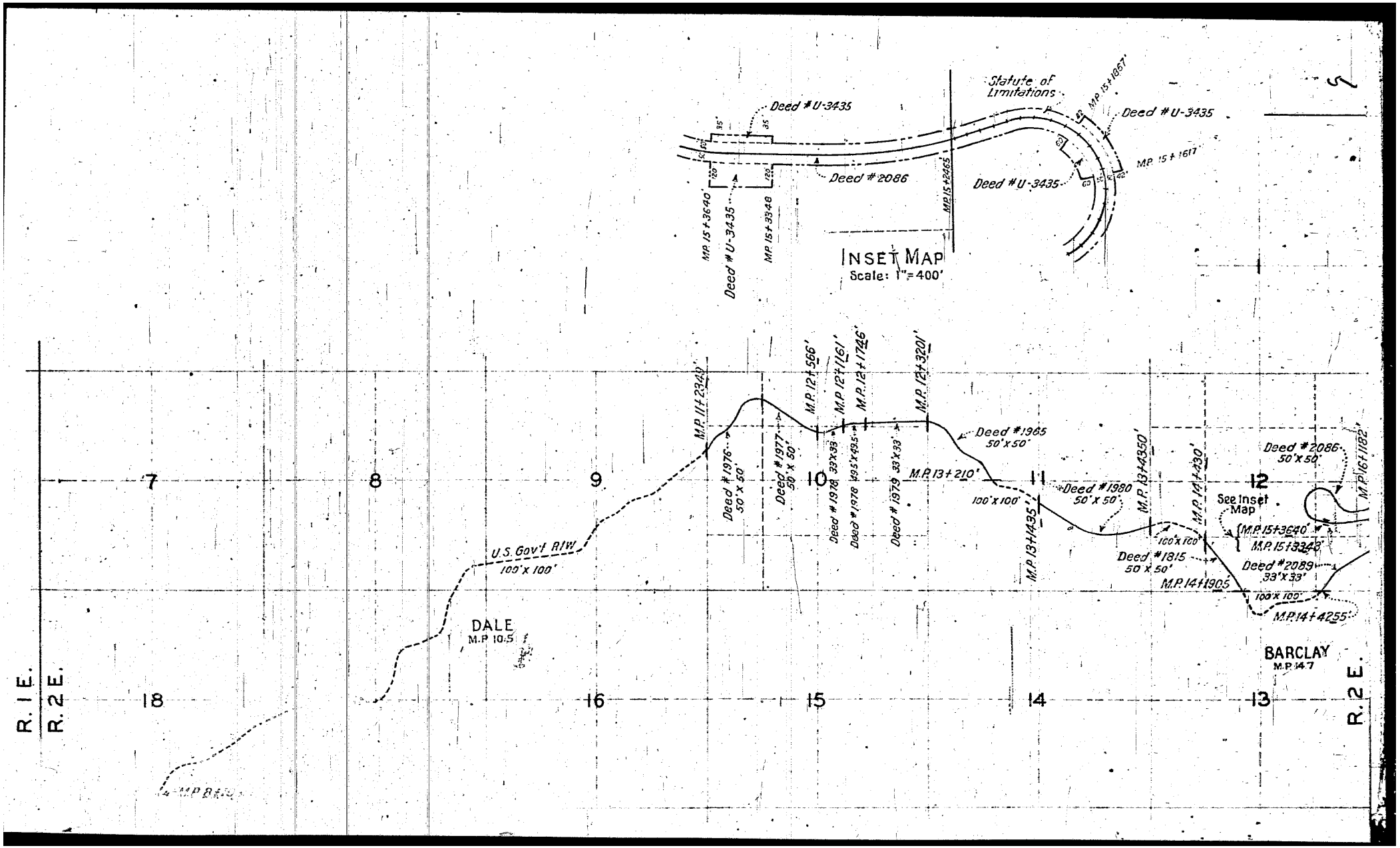


EXHIBIT "A"

Parcels of Land
on Abandoned Portion of
PARK CITY BRANCH
Conveyed to
State Road Commission of Utah

March 1948 Scale: 1"=2000'


INSET MAP
Scale: 1" = 400'
Statute of Limitations
Deed # U-3435
Deed # 2086
M.P. 15+1867'
M.P. 15+1617'
M.P. 15+2465
M.P. 15+3640'
M.P. 15+3348'
M.P. 11+2340'
M.P. 12+566'
M.P. 12+1161'
M.P. 12+1746'
M.P. 12+3201'
M.P. 13+210'
M.P. 13+1435'
M.P. 13+4350'
M.P. 14+430'
M.P. 14+1905
M.P. 14+4255'
M.P. 16+1182'
Deed # 1976 50' x 50'
Deed # 1977 50' x 50'
Deed # 1978 33' x 33'
Deed # 1978 495' x 495'
Deed # 1979 33' x 33'
Deed # 1985 50' x 50'
Deed # 1980 50' x 50'
Deed # 1815 50' x 50'
Deed # 2089 33' x 33'
Deed # 2086 50' x 50'
100' x 100'
U.S. Gov't R/W 100' x 100'
See Inset Map
DALE
M.P. 10.5
BARCLAY
M.P. 14.7
R. 1 E.
R. 2 E.
R. 2 E.
7
8
9
10
11
12
18
16
15
14
13